

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2024CUCD019255: JOHN KRABLIN vs ESPINO ROOFING, INC., et al.

09/03/2026 in Department 41

Motion for Judgment on the Pleadings

Below is the Court's tentative decision with respect to the matter on calendar. The Court may adopt, modify, or change the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

If you wish to submit on the Court's tentative decision without appearing, please send an email to the following address by 8:00 a.m. on the date of the hearing with counsel for all parties copied on your email: courtroom41@ventura.courts.ca.gov. Please state on the subject line of your email: "SUBMISSION ON TENTATIVE", Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative decision is subject to change.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the Court. A "notice of ruling" in lieu of this procedure is not authorized.

The Court intends to rule as follows:

The Court DENIES the Motion for Judgment on the Pleadings in its entirety.

I. Background

On January 1, 2024, plaintiff John Krablin dba Krablin Enterprises ("Plaintiff") filed a complaint (the "Complaint") against Espino Roofing, Inc., Baez Plastering Expressions, Inc., Rafa Plastering, Inc., Adam Hellenbrand Construction; Milgard Windows & Doors (each a "Defendant" and collectively, "Defendants") for (1) breach of oral contract to indemnify, defend and obtain insurance; (2) breach of implied contract to indemnify, defend and obtain insurance; (3) equitable / implied indemnity; (4) contribution and repayment; (5) negligence; and (6) declaratory relief.

The Complaint alleges that Plaintiff was the general contractor for the remodel of residential property located in Ventura, California and that the homeowner sued Plaintiff in arbitration for breach of contract and negligence based on purported construction defects. The Complaint further alleges that Defendants were subcontractors for the project; Plaintiff entered into an oral contract for indemnity, defense and insurance with each Defendant; and Defendants have failed to indemnify or defend Plaintiff, make repairs at the property, or tender the underlying claim to

their respective insurers. The Complaint was filed before conclusion of the arbitration between Plaintiff and the homeowner.

On July 14, 2026, Defendant Baez Plastering Expressions, Inc. (“Baez”) filed the instant Motion for Judgment on the Pleadings (the “Motion”), contending that all six causes of action pleaded in the Complaint are not ripe for adjudication and fail to disclose a justiciable controversy because Plaintiff had not *yet* suffered an adverse judgment. Plaintiff opposes.

II. Discussion

A. Legal Standard

A defendant may move for judgment on the pleadings on the grounds that the court has no subject matter jurisdiction of the cause of action alleged in the complaint, or the complaint does not state facts sufficient to constitute a cause of action against that defendant. (Code Civ. Proc., § 438, subd. (c)(1)(B).) “The grounds for motion provided for in this section shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (*Ibid.*, subd. (d).) “An MJOP is equivalent to a demurrer and is governed by the same standard of review. All material facts that were properly pleaded are deemed true, but not contentions, deductions, or conclusions of fact or law.” (*Pang v. Beverly Hosp., Inc.* (2000) 79 Cal.App.4th 986, 989; see also *Westly v. Board of Admin.* (2003) 105 Cal.App.4th 1095, 1114.)

B. Analysis

As a preliminary matter, the instant Motion is directed to the entire Complaint, not just to certain causes of action. Thus, if one cause of action survives, all survive. (See *Warren v. Atchison, Topeka & Santa Fe Ry. Co.* (1971) 19 Cal.App.3d 24, 36 [holding that if there are several causes of action in the complaint, a challenge to the entire complaint may be overruled if any cause of action is properly stated].)

Here, Baez contends that the Motion should be granted because no cause of action contained in the operative pleading is “ripe” yet.

A motion for judgment on the pleadings may be sustained when the plaintiff’s claims are not ripe for adjudication. (*York v. City of Los Angeles* (2019) 33 Cal.App.5th 1178, 1195-1197.) “The ripeness requirement, a branch of the doctrine of justiciability, prevents courts from issuing purely advisory opinions.” (See *Pacific Legal Foundation v. California Coastal Commission* (1982) 33 Cal.3d 158, 170.) “[T]he ripeness doctrine is primarily bottomed on the recognition that judicial decisionmaking is best conducted in the context of an actual set of facts so that the issues will be framed with sufficient definiteness to enable the court to make a decree finally disposing of the controversy.” (*Ibid.*) “‘The controversy must be definite and concrete, touching the legal relations of parties having adverse legal interests. [Citation.] It must be a real and substantial controversy admitting of specific relief through a decree of a conclusive character, as distinguished from an opinion advising what the law would be upon a hypothetical state of facts.’” (*Ibid.* at p. 170-171.) One of the factors to consider is whether the withholding of judicial consideration will result in a hardship to the parties. (*Dominguez v. Bonta* (2022) 87 Cal.App.5th

389, 418-419.) The courts will not intervene merely to settle a difference of opinion; there must be an imminent and significant hardship inherent in further delay. (*Ibid.* at p. 419.)

In the first cause of action for breach of contract, Plaintiff alleges that Baez and others “have a duty and were obligated, pursuant to the oral contracts, to obtain insurance in [Plaintiff’s] name arising from the work” that is the subject of the arbitration, and that they “failed to obtain the required insurance.” (Complaint ¶ 20.) Plaintiff also alleges that Baez and others were “obligated to defend” Plaintiff in the arbitration. (Complaint ¶¶ 15, 16, 18-20.) Baez does not explain how this cause of action is not ripe when the time for procuring insurance and providing a defense on Plaintiff’s behalf has already passed. Any doubt as to whether the facts give rise to a duty to defend is resolved in favor of the indemnitee. (See *Hartford Cas. Ins. Co. v. Swift Distribution, Inc.* (2014) 59 Cal.4th 277, 287-288; *Gonzalez v. Fire Insurance Exchange* (2015) 234 Cal.App.4th 1220, 1235-1236.) Consequently, the first cause of action is ripe on this basis alone.

Moreover, to the extent that Baez focuses on the indemnity allegations in the Complaint, Plaintiff alleges that he has already suffered cognizable damages in the form of “attorneys’ fees, court costs, and the expenses of this Action and other claims and actions, including the Arbitration” (See, e.g., Complaint ¶ 25). Further, in his Opposition, Plaintiff states that the arbitration has now concluded: with a three-million-dollar award in the homeowner’s favor. (Opposition, 4:24-5:5.) Therefore, the first cause of action is ripe on this basis as well.

The same analysis applies to the second cause of action for breach of an implied agreement to secure insurance and to provide a defense, the fourth cause of action for contribution and repayment, and the sixth cause of action for declaratory relief regarding the failure to secure insurance or to provide a defense.

The fifth cause of action is for negligence. Plaintiff alleges that Baez and others “breached their duties to KRABLIN by negligently, carelessly and wrongfully failing to use reasonable care in connection with their work performance in the construction of the HOME on the PROPERTY.” (Complaint, ¶ 36.) Although the damage element is not carefully pleaded, the Complaint alleges that the negligence has already occurred and that Plaintiff has incurred legal fees and costs as a result. Accordingly, this cause of action is also on its face ripe.

Finally, to the extent the Motion intended to seek judgment as to each cause of action, the Court will address the third cause of action for equitable indemnity. “The right to indemnity flows from payment of a joint legal obligation on another’s behalf. The elements of a cause of action for indemnity are (1) a showing of fault on the part of the indemnitor and (2) resulting damages to the indemnitee for which the indemnitor is equitably responsible.” (*Bailey v. Safeway, Inc.* (2011) 199 Cal.App.4th 206, 212; *Great Western Drywall, Inc. v. Interstate Fire & Cas. Co.* (2008) 161 Cal.App.4th 1033, 1041.) Technically, equitable indemnity is not available absent the existence of a joint legal obligation to the injured party. (*Jocer Enters., Inc. v. Price* (2010) 183 Cal.App.4th 559, 573.) “A fundamental prerequisite to an action for partial or total equitable indemnity is an actual monetary loss through payment of a judgment or settlement.” (*Western Steamship Lines, Inc. v. San Pedro Peninsula Hospital* (1994) 8 Cal.4th 100, 110; in accord, *Green Wood Indust. Co. v. Forceman Internat. Development Group, Inc.* (2007) 156 Cal.App.4th 766, 776.) Although a covenant to indemnify is only triggered upon “becoming liable” or

“payment thereof” (see Civil Code §2778(1)-(2)), the duty to defend a claim “arises immediately upon a proper tender of defense by the indemnitee.” (See *Crawford v. Weather Shield Manufacturing* (2008) 44 Cal.4th 541, 547.)

The third cause of action may not have technically been ripe when the Complaint was filed. Since the arbitration proceedings are allegedly complete and Plaintiff purportedly suffered an adverse judgment, this cause of action would be ripe now.

III. Conclusion

For the foregoing reasons, Baez’s Motion for Judgment on the Pleadings is DENIED in its entirety. Each cause of action in the Complaint is ripe and has been sufficiently pleaded.